

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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JOSEPH FESSALE and MITZIE SIMON,

Plaintiffs,

Index No.: 11-CV-894 (KAM)(VVP)

AMENDED COMPLAINT

DEMAND FOR JURY TRIAL

-against-

THE CITY OF NEW YORK, SGT EDWARD BABINGTON,
SGT BADILLO, P.O. MARK BEELITZ, P.O. MEHMOOD,
P.O. DIXON, P.O. DAUGHTRY, P.O. JOSEPH,
and LT. ORTLIEB, all of the 67th Precinct,

Defendants.

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PLAINTIFFS, by their attorney, Chidi Eze, Esq., complaining of the City of New York,
and the defendant Police Officers, upon information and belief, allege as follows:

JURISDICTION

1. This is an action at law to redress the deprivation, under color of statute, ordinance, regulation, custom or usage, by Defendants of the rights, privileges and immunities secured to Plaintiffs by the First, Fourth, Fifth and Fourteenth Amendments to the Constitution, and by 42 U.S.C. §1983 [and §1985], and arising under Article 1 Section 12 of the State of New York Constitution and New York State Common Law.

2. Jurisdiction is specifically conferred on the United States District Court by

28 U.S.C. § 1331, this being an action arising under the Constitution and Federal law, and by 28 U.S.C. § 1343(a)(3), this being an action authorized by law to redress the deprivation, under color of statute, ordinance, regulation, custom or usage, of rights, privileges and immunities secured to Plaintiffs by the First, Fourth, Fifth and Fourteenth Amendments to the Constitution, and by 42 U.S.C. § 1983. Plaintiffs further invoke the pendent jurisdiction of this Court in accordance with the above-stated laws.

3. Venue is proper because the acts complained of herein occurred in Brooklyn, in the County of Kings, New York, which is in the Eastern District of New York.

PARTIES

4. During all times relevant and material to this Complaint, Plaintiffs were, and are still legal residents, residing in Brooklyn, New York.

5. During all times relevant and material to this case, Defendant City of New York was a municipal corporation incorporated under the laws of the State of New York.

6. During all times relevant and material to this case, Defendant Police Officers were employees of Defendant City of New York through its Police Department, most of whom are employed at the 67th Precinct.

7. During all times relevant and material to this case, the actions of the individual Police Officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of Defendant City of New York and New York Police Department (hereinafter NYPD), and Defendant City of New York is as such responsible for the individual Defendants'

actions. Defendant City of New York is further responsible for the actions of the individual Defendants under the principal agent/*respondeat superior* rule.

FULFILMENT OF ADMINISTRATIVE PREREQUISITES

8. All conditions precedent for the filing of this action have been complied with: a written Notice of Claim, sworn to by each and every Plaintiff herein, was served upon Defendant City of New York to the person designated by law as one to whom a summons against Defendant City of New York may be delivered in an action in the District Court.

9. At least thirty days have elapsed since the service of the Notices of Claim, and adjustment or payment of the claims has been neglected or refused.

FACTS COMMON TO ALL CAUSES OF ACTION

10. The incident that gave rise to this Complaint occurred on March 15, 2010, at approximately 09:15 A.M., at 425 East 35th Street, Brooklyn, NY 11203, County of Kings, City and State of New York.

11. On the morning of March 15, 2010, at approximately 9:15 a.m., plaintiff Fessale was at his said home of 425 East 35th Street in Brooklyn, when the defendant police officers, with guns all drawn, came breaking down his door and barging into his home, which he shared with his fiance and child, without a warrant and without any explanation of their mission. Plaintiff Simon, who also lived in the same building, had already left her apartment on her way to work, when she was wrestled to the floor by the defendant officers on the street, towards the end of her block.

12. More specifically, Plaintiff Fessale was at his said home of 425 East 35th Street, 1st

Floor, Brooklyn, NY 11203, on April 15, 2010, at approximately 9:15am, when his door was broken down by the defendant police officers, who rushed inside with shields and guns drawn. Fessale was home with his 1 year old daughter and his baby's mother when the officers attacked him inside his home. He was rushed to the floor, and handcuffed behind his back while his faced was forcibly pressed down to the floor. He was brutally assaulted, beaten, kicked in the head, neck and body while faced-down handcuffed. The officers then proceeded to ransack his home, while destroying and damaging every single of his personal belongings in the process. After said search, Fessale was taken to the 67th Precinct where he was further searched, processed and booked. He was released after approximately Eight (8) hours, with two Desk Appearance Tickets. Upon being release, Mr. Fessale went straight to Kings County Hospital where he was given emergency treatment for his injuries. He appeared in court on a few occasion before those cases were dismissed. Mr. Fessale was unable to follow up his treatment due to financial constraints.

13. Plaintiff Simon was picked off the street, at approximately 9:15 am on the morning of April 15, 2010, near her home, handcuffed on the street, and taken straight to 67th Precinct while other officers ransacked her home, damaging, destroying and displacing her personal belongings. She was stripped, searched and processed at the Precinct. She was released after approximately Seven (7) hours of detention. This plaintiff lost a day's pay as a result of this false arrest. She was given two Desk Appearance Tickets (DATs). She appeared in court on one or two occasion before those cases were ultimately dismissed.

14. Upon the foregoing actions of the defendants, plaintiff Fessale has continued to suffered severe head, neck and back pains to this day, quite apart from the multiple lacerations that left their marks all over his body.

15. Plaintiffs have been damaged by the actions of the City of New York and its agents, were made to endure degrading bodily cavity searches, held at gun point, held hostage in their own homes, were subjected to inhumane treatment, were made to suffer infringement to their privacy rights, were arrested and detained without probable cause. Plaintiff Simon lost a day's wage as a result of this illegal search and seizure. Plaintiff Fessale was brutally assaulted and beaten were facing down in handcuffs. Plaintiff Simon and Fessale were also maliciously prosecuted. Plaintiffs suffered and continue to suffer severe mental anguish, reputation injuries, psychological and emotional distress, some or all of which may be permanent.

16. The Defendant officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employments as NYPD officers. The conduct of the defendant officers complained of herein were beyond the scope of their jurisdiction, without legal authority, and in abuse of their authority.

17. Defendant City of New York is further responsible for the actions of the individual Defendants under the principal agent/*respondeat superior* rule.

AND AS FOR A FIRST CAUSE OF ACTION

18. Plaintiffs repeat and re-allege paragraphs 1 through 17 as if each paragraph is repeated verbatim herein.

19. The defendant police officers arrested and imprisoned Plaintiffs without probable cause, without a warrant and with malice and intentional disregard for their constitutional rights. The Defendants, acting under color of State Law, violated Plaintiffs' right to be free from unreasonable seizures, secured to them under the Fourth and Fourteenth Amendments to the

Constitution, and their right not to be deprived of liberty without due process of law, secured to them under the Fifth and Fourteenth Amendments. By denying Plaintiffs their Constitutional rights under color of State Law, the Defendants violated 42 U.S.C. §1983.

20. In addition, the defendant officers conspire to deny plaintiffs their Constitutional rights secured to them by 42 U.S.C. §1983 [1985], and took several overt steps in furtherance of the conspiracy as set forth above.

21. As a result of the seizure of their person, Plaintiffs were denied their freedom and liberty and suffered emotional and mental distress thereof. Plaintiffs claim compensatory damages in the amount of \$2,000,000 for each plaintiff. In addition, because the defendant police officers acted with malice and intentional disregard for their Constitutional rights when they arrested and imprisoned them, Plaintiffs seek \$2,000,000 in punitive damages against the defendant officers jointly and severally.

AND AS FOR A SECOND CAUSE OF ACTION

22. Plaintiffs repeat and re-allege paragraphs 1 through 21 as if each paragraph is repeated verbatim herein.

23. In violation of Article 1 Section 12 of the New York State Constitution, and New York State Common Law, the defendant police officers falsely arrested and imprisoned Plaintiffs for 8 hours without probable cause, deprived them of their rights, remedies, privileges, and immunities guaranteed to them by said law.

24. In addition, the defendant officers conspire to deny plaintiffs their Constitutional rights secured to them by Article 1 Section 12 of the New York State Constitution, and took several overt steps in furtherance of the conspiracy as set forth above.

25. Plaintiffs were denied their freedom and liberty, and therefore suffered emotional and mental distress as a result. Plaintiff Mitzie Simon lost a day's wages as a result of the within incident. Plaintiffs claim compensatory damages in the amount of \$2,000,000 for the violation of their rights under Common Law and for emotional and mental distress. In addition, because the defendant police officers acted with malice and intentional disregard for their Constitutional rights when they arrested and imprisoned them, Plaintiffs seek \$2,000,000 in punitive damages.

AND AS FOR A THIRD CAUSE OF ACTION

26. Plaintiffs repeat and re-allege paragraphs 1 through 25 as if each paragraph is repeated verbatim herein.

27. The defendants maliciously prosecuted plaintiffs Fessale and Simon without just cause in violation of 42 U.S.C. §1983 and Article 1 Section 12 of the New York State Constitution and the Common Law.

AND AS FOR A FOURTH CAUSE OF ACTION

28. Plaintiffs repeat and re-allege paragraphs 1 through 27 as if each paragraph is repeated verbatim herein.

29. The defendants subjected plaintiffs to cruel and inhumane treatment without justification in violation of their constitutional rights. The defendants intentionally and or negligently invaded plaintiffs privacy without warning, subjected them to aggressive bodily cavity searches, and held them at gun point without justification in violation of the Common Law and their Constitutional rights.

30. Plaintiffs claim compensatory damages in the amount of \$2,000,000 for the

violation of these rights, resulting in emotional and mental distress. In addition, because the Defendants acted with malice and intentional disregard for their said Constitutional rights, Plaintiffs seek \$2,000,000 in punitive damages.

AND AS FOR A FIFTH CAUSE OF ACTION

31. Plaintiffs repeat and re-allege paragraphs 1 through 30 as if each paragraph is repeated verbatim herein.

32. The defendant police officers were acting as agents of the City of New York when they arrested and detained Plaintiffs without probable cause. Therefore, under the principal agent/*respondeat superior* rule, the City of New York is jointly and severally liable with the defendant police officers for the compensatory damages Plaintiffs sustained in the First, Second, Third, Fourth and Seventh Causes of Action.

33. Plaintiffs claim compensatory damages in the amount of \$2,000,000 for the violation of these rights, resulting in emotional and mental distress. In addition, because the Defendants acted with malice and intentional disregard for their Constitutional rights, Plaintiffs seek \$2,000,000 in punitive damages.

AND AS FOR A SIXTH CAUSE OF ACTION

34. Plaintiffs repeat and re-allege paragraphs 1 through 33 as if each paragraph is repeated verbatim herein.

35. The defendant Police Officers' violations of Plaintiffs' Constitutional, Federal and State Law rights in the First, Second, Third, Fourth and Seventh Causes of Action were carried out under the unlawful and injurious policies, customs, and practices of the City of New York and

its Police Department.

AND AS FOR A SEVENTH CAUSE OF ACTION

36. Plaintiffs repeat and re-allege paragraphs 1 through 35 as if each paragraph is repeated verbatim herein.

37. The defendants assaulted and battered plaintiff Fessale and used unreasonable force to secure said plaintiff in violation of 42 U.S.C. §1983 and the New York State Constitution. Further the defendants were negligent in inflicting several and severe injuries upon said plaintiff in violation of New York State common law..

WHEREFORE, Plaintiffs pray the Court for judgment as follows for each Cause of Action:

- i. \$2,000,000 in compensatory damages for each plaintiff against all the defendants, jointly and severally;
- ii. \$2,00,000 in punitive damages against the individual defendant police officers, jointly and severally;
- iii. attorney's fees, plus the costs and disbursements of these actions against all Defendants, jointly and severally;
- iv. such other relief as the Court may deem just, proper and equitable.

Dated: Brooklyn, New York
January 4, 2012

By: _____
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